

DISTRICT COURT, METRO COUNTY, STATE OF ST

JOHN DOE, Plaintiff,

v.

APEX DELIVERY SERVICES, INC., and ROBERT W. SMITH, Defendants.

Case No. 2026-CV-04471

Dept. 12

COMPLAINT FOR DAMAGES

Filed: June 1, 2026 · Clerk stamp: FILED 06/01/2026 09:14

PARTIES

1. Plaintiff JOHN DOE resides at 4412 Oak Lane, Riverview Park, ST 90211.
2. Defendant ROBERT W. SMITH operated a 2019 Ford F-150 on February 14, 2026.

FACTUAL ALLEGATIONS

3. On February 14, 2026, at approximately 14:35, Defendant Smith failed to yield and struck Plaintiff's 2023 Tesla Model Y at 4th Ave & Main St, Metro Center.
4. Plaintiff was extricated by mechanical means and transported to Metro General Hospital.

COUNT I — NEGLIGENCE (ROBERT W. SMITH)

5. Defendant Smith owed Plaintiff a duty of reasonable care and breached it by disregarding a traffic control device.

PRAYER FOR RELIEF

Plaintiff demands judgment for compensatory damages, costs, and such further relief as the Court deems just.

Clerk's note: This complaint names only the driver. It does not plead vicarious liability or negligent entrustment against Apex Delivery Services, Inc. Superseded by the First Amended Complaint filed June 10, 2026.

LSH Law Group, Attorney for Plaintiff

Date: 06/01/2026

SUPERSEDED